

Court No. - 37

Case :- WRIT - C No. - 5228 of 2013

Petitioner :- Basant Lal

Respondent :- State Of U.P. Thru Collector And Others

Petitioner Counsel :- S.R. Singh

Respondent Counsel :- C.S.C.,Amrit Lal Yadav

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned Counsel for the petitioner and Sri A.L. Yadav, learned Counsel for the respondents.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 10.1.2013 (Annexure-1 to the writ petition).

Learned Counsel for the petitioner submits that electricity bill dated 7.1.2013 has been issued to the petitioner, copy of which has been filed as Annexure-4 to the writ petition.

We are of the view that under the U.P. Electricity Supply Code 2005, the petitioner has statutory remedy of raising objections against electricity bill or electricity charges. Learned Counsel for the petitioner submits that the petitioner is ready to deposit the amount in installments. We are of the view that such request of the petitioner can be considered by the Executive Engineer. There being statutory remedy available to the petitioner, we are of the view that the petitioner may avail statutory remedy as provided under the U.P. Electricity Supply Code,2005.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 30.1.2013

LA/-